

COVENANT RUNNING WITH THE LAND

THIS COVENANT RUNNING WITH THE LAND (this "Covenant") is made and granted to be effective this 15th day of July, 2002, by the County of Boulder, a body corporate and politic (the "County"), to and in favor of Michael D. Dollaghan and William W. Crowell ("the "Principals").

Recitals

This Covenant is made with respect to the following facts:

A. Michael D. Dollaghan and William W. Crowell are the principals in Marigold 41, a Colorado general partnership ("Marigold").

B. Simultaneously with the delivery of this Covenant, the County is purchasing from Marigold a future interest (commencing at midnight, December 31, 2021) in the property described on Exhibit A attached hereto and by this reference made part hereof (the "Property") and the real property described on Exhibit B, attached hereto and by this reference made part hereof (the "Option Property"). Said future interest is hereinafter called the "Future Interest." The County is purchasing other interests in other property from Marigold that are not subject to this Covenant.

C. As part of such purchase, the County is also succeeding to Marigold's rights under the Cotenancy Agreement recorded March 25, 1993, at Film 1808, as Reception No. 01276720, as amended by the Amendment to Cotenancy Agreement recorded August 10, 2001 as Reception No. 2186007 (as so amended, the "Cotenancy Agreement").

D. Contemporaneously with the above-described purchase, the County is also being granted, by another party, an option to purchase the Option Property.

E. The County has agreed to give this Covenant to the Principals in connection with the purchase of the Future Interest from Marigold.

Covenant

In consideration of the sale of the Future Interest from Marigold to the County, the receipt and sufficiency of which is hereby acknowledged by the County, the County does hereby promise, covenant, and agree as follows:

1. Restriction on Use. As owner of the Future Interest, the County shall:



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1.1 Not permit or consent to or approve the use of the Property for the excavation or extraction or removal of minerals or other materials ("Mining") after December 31, 2021, and not permit or consent to or otherwise approve the use of the Property for a landfill or waste disposal site.

1.1.1 As used in this Covenant, a landfill or waste disposal site shall not include the burying, placement or relocation of overburden and other materials mined on the Property at other locations on the Property in connection with reclamation of the Property from Mining so long as such overburden and other materials do not include kiln dust or hazardous materials.

1.1.2 As used in this Covenant, Mining shall not include activities in connection with reclamation, including, but not limited to, earth and rock moving, grading, planting, and removal of structures, tanks and equipment. The prohibition on Mining contained herein does not prohibit reclamation of the Property after December 31, 2021, so long as it is consistent with Boulder County Special Use Permit 93-14, as approved in Boulder County Resolution 94-81, including without limitation the extended time referenced in Boulder County Resolution 94-81, page 7, paragraph 15.

1.2 To the extent the County is able to control the use of the Property, prevent the use of the Property for Mining after December 31, 2021, and prevent the use of the Property for a landfill or waste disposal site.

1.3 To the extent that the County does not have control over the use of the Property but has influence over the use of the Property, use its influence to try to prevent the use of the Property for Mining after December 31, 2021, and to try to prevent the use of the Property as a landfill or waste disposal site.

1.4 If, and only if, the County acquires the Option Property, either pursuant to its option to purchase or otherwise, the covenants set forth in Sections 1.1, 1.2 and 1.3 above shall also bind the Option Property, from and after the date of the County's acquisition thereof. This Covenant shall not apply to the County's acquisition of a conservation easement in gross over the Option Property.

Nothing contained in this Covenant shall be applicable to actions of the County in its governmental capacity, and nothing in this Section 1 shall be deemed to prevent the County from exercising its regulatory authority over the Property as the County deems appropriate. This Covenant shall, however, be applicable to all actions of the County in its proprietary capacity as owner of the Future Interest.

2. Covenant Running with the Land. The obligations of the County under this Covenant touch and concern the Property and run with the Property to and in favor of the Principals. This Covenant and the obligations of the County under this Covenant shall be binding on the County and the Future Interest and the County's successors as owners of any interest in the Property.



3. Assignment; Inurement. The Principals' rights under this Covenant shall not be transferrable except to the Principals and their direct descendants or to the County. This Covenant shall inure to the benefit of the Principals and their successors and assigns and may be enforced by the Principals and their successors and assigns.

4. No Waiver. No right of the Principals hereunder may be waived by the Principals except in writing executed by the Principals and specifically referring to this Covenant. No failure of the Principals to insist on the strict compliance by the County with its obligations under this Covenant shall constitute a waiver of any right of the Principals hereunder or impair the Principals' rights to enforce this Covenant in any subsequent or different instance.

5. Remedies; Attorneys' Fees. In the event of any breach or default under this Covenant, the Principals shall be entitled to specifically enforce the obligations of the County under this Covenant and to all other remedies normally available for such breach, whether at law or in equity. If it is necessary for the Principals to bring an action to enforce any term or provision of this Covenant, in addition to any other remedies to which the Principals may be entitled, the Principals shall be entitled to recover all costs and expenses reasonably incurred in connection with such breach or violation, including attorneys' fees, provided that the Principals are the prevailing parties in such action.

6. Governing Law. This validity and effect of this Covenant shall be determined in accordance with the laws of the State of Colorado.

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IN WITNESS WHEREOF, County has executed this Covenant on the date set forth in the acknowledgment intending that this Covenant be effective as of the day and year first above set forth.

COUNTY OF BOULDER, a body corporate and politic

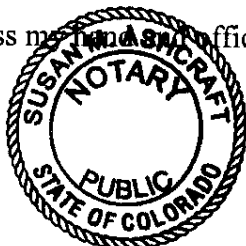
By: Paul D. Danish
Paul D. Danish, Vice-Chair

COUNTY OF BOULDER)
STATE OF COLORADO) ss.

The foregoing instrument was acknowledged before me this 14th day of July, 2002, Paul D. Danish, Vice-Chair, of the Board of County Commissioners of Boulder County, Colorado, a body corporate and politic.

(S E A L)

Witness me and my official seal.



My Commission Expires 10/17/2005

Susan M. Wherrett
Notary Public

My Commission Expires: 10-17-2005



The following real property located in Boulder County, Colorado:

Parcel A

A tract of land located in Sections 9, 16 and 21, all in T3N, R70W of the 6th P.M., described as follows:

Commencing at the S 1/4 corner of said Section 9, from which the Southeast corner of said Section 9 bears S87°27'25"E, 2644.89 feet, thence S87°27'25"E, 599.46 feet along the South line of the SE 1/4 of said Section 9 to the True Point of Beginning;

Thence N07°49'07"W, 1538.20 feet;

Thence N00°44'32"E, 1903.12 feet to the Southeasterly line of Tract "B" conveyed to the United States of America as described in Warranty Deed recorded in Book 903 at Page 221 of the records of Boulder County, Colorado;

Thence S40°01'00"W, 214.48 feet along the Southeasterly line of said Tract "B" to a point of curve to the right;

Thence Southwesterly, 158.24 feet along the Southeasterly line of said Tract "B" and along the arc of said curve to a point tangent, said arc having a radius of 643.00 feet, a central angle of 14°06'00" and being subtended by a chord that bears S47°04'00"W, 157.84 feet;

Thence S54°07'00"W, 799.62 feet along the Southeasterly line of said Tract "B" to the East-West centerline of said Section 9;

Thence N88°00'00"W, 2146.94 feet along the East-West centerline of said Section 9 to the W 1/4 corner of said Section 9;

Thence S00°24'30"W, 2618.21 feet along the West line of the SW 1/4 of said Section 9 to the Southwest corner of said Section 9;

Thence S00°27'54"W, 2773.47 feet along the West line of the NW 1/4 of said Section 16 to the W 1/4 corner of said Section 16;

Thence S00°28'48"W, 2770.15 feet along the West line of the SW 1/4 of said Section 16 to the Southwest corner of said Section 16;

Thence S00°26'16"W, 1316.49 feet along the West line of the NW 1/4 of said Section 21 to the Southwest corner of the NW 1/4 of the NW 1/4 of said Section 21;

Thence S89°49'48"E, 1325.03 feet along the South line of the NW 1/4 of the NW 1/4 of said Section 21 to the Southeast corner thereof;

Thence N00°27'00"E, 897.37 feet along the East line of the NW 1/4 of the NW 1/4 of said Section 21 to the approximate Easterly bank of the Supply Ditch and to the Westerly line of that tract of land conveyed to Matt Ruskie and Fannie Ruskie as described in Warranty Deed recorded in Book 584 at Page 231 of the records of Boulder County, Colorado;

Thence N41°11'48"W, 104.41 feet along the approximate Easterly bank of said Supply Ditch and along the Westerly line of that tract of land as described in said Book 584 at Page 231;

Thence N17°17'58"W, 243.37 feet along the approximate Easterly bank of said Supply Ditch and along the Westerly line of that tract of land as described in said Book 584 at Page 231;

Thence N03°09'35"E, 111.70 feet along the approximate Easterly bank of said Supply Ditch and along the Westerly line of that tract of land as described in said Book 584 at Page 231 to the South line of the SW 1/4 of said Section 16;

Thence N89°58'20"W, 137.03 feet along the South line of the SW 1/4 of said Section 16 to the Southwest corner of that tract of land conveyed to Matt and Fanny Ruski as described in Warranty Deed recorded in Book 601 at Page 45 of the records of Boulder County, Colorado and as described in Quit Claim Deed recorded in Book 603 at Page 26 of the records of Boulder County, Colorado;

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Thence N00°01'40"E, 1320.00 feet along the West line of that tract of land as described in said Book 601 at Page 45 and in said Book 603 at Page 26 to the Northwest corner thereof;

Thence S89°58'20"E, 996.00 feet along the North line of that tract of land as described in said Book 601 at Page 45 and in said Book 603 at Page 26 to the Northeast corner thereof;

Thence S00°01'40"W, 1194.76 feet along the East line of that tract of land as described in said Book 601 at Page 45 and in said Book 603 at Page 26 to the approximate Southerly bank of said Supply Ditch and along the Northerly line of that tract of land as described in said Book 584 at Page 231;

Thence S34°07'46"E, 151.34 feet along the approximate Southerly bank of said Supply Ditch and along the Northerly line of that tract of land as described in said Book 584 at Page 231 to the South line of the SW 1/4 of said Section 16;

Thence S89°58'20"E, 25.37 feet along the South line of the SW 1/4 of said Section 16 to the West line of the East 30 acres of the NW 1/4 of said Section 21;

Thence S00°27'46"W, 2643.55 feet along the West line of the East 30 acres of the NW 1/4 of said Section 21 to the South line of the NW 1/4 of Section 21;

Thence S89°40'32"E, 279.60 feet along the South line of the NW 1/4 of said Section 21 to the Southwest corner of that tract of land conveyed to Wm. L. Parsons as described in Warranty Deed recorded in Book 70 at Page 162 of the records of Boulder County, Colorado;

Thence N27°54'28"E, 465.40 feet along the Northwesterly line of that tract of land as described in said Book 70 at Page 162 to the North-South centerline of said Section 21;

Thence N00°27'46"E, 645.55 feet along the North-South centerline of said Section 21 to the South line of the North 265.00 feet of the NW 1/4 of the SW 1/4 of the NE 1/4 of said Section 21;

Thence S89°46'54"E, 330.00 feet along the South line of the North 265.00 feet of the NW 1/4 of the SW 1/4 of the NE 1/4 of said Section 21 to the East line of the West 330.00 feet to the NW 1/4 of the SW 1/4 of the NE 1/4 of said Section 21;

Thence N00°27'46"E, 265.00 feet along the East line of the West 330.00 feet of the NW 1/4 of the SW 1/4 of the NE 1/4 of said Section 21 to the South line of the NW 1/4 of the NE 1/4 of said Section 21;

Thence S89°46'52"E, 328.67 feet along the South line of the NW 1/4 of the NE 1/4 of said Section 21 to the Southeast corner of the W 1/2 of the NW 1/4 of the NE 1/4 of said Section 21;

Thence N00°28'52"E, 1324.28 feet along the East line of the W 1/2 of the NW 1/4 of the NE 1/4 of said Section 21 to the Northeast corner thereof;

Thence N00°32'09"E, 2699.69 feet along the East line of the W 1/2 of the W 1/2 of the SE 1/4 of said Section 16 to the Northeast corner thereof;

Thence N0°29'06"E, 2700.60 feet along the East line of the W 1/2 of the W 1/2 of the NE 1/4 of said Section 16 to the Northeast corner thereof;

Thence N87°27'25"W, 61.76 feet along the South line of the SE 1/4 of said Section 9 to the True Point of Beginning;

EXCEPTIONS:

Tract "B", Tract "C", Tract "F", Tract "G", Tract "I" and Tract "S" conveyed to the United States of America as described in Warranty Deed recorded in Book 903 at Page 221 of the records of Boulder County, Colorado.

Tract "F" and Tract "G" conveyed to the United States of America as described in Warranty Deed recorded in Book 905 at Page 250 of the records of Boulder County, Colorado.

Road right-of-way for Colorado State Highway No. 66.

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Right-of-way for the Burlington and Northern Railroad.

All that portion of the Highland Ditch located in the W 1/2 of the NW 1/4 of the NE 1/4 of said Section 21.

Parcel B:

A tract of land located in the E 1/2 of Section 9, the SW 1/4 of Section 1C, Section 15, the E 1/2 of Section 16, the NE 1/4 of Section 21 and in the NW 1/4 of the NE 1/4 of Section 22, all in T3N, R70W, of the 6th P.M., described as follows:

Commencing at the S 1/4 corner of said Section 9, from which the Southeast corner of said Section 9 bears S87°27'25"E, 2644.89 feet, thence S87°27'25"E, 599.46 feet along the South line of the SE 1/4 of said Section 9 to the True Point of Beginning, from which a point hereinafter referred to as Point "A" bears N07°49'07"W, 1538.20 feet;

Thence continuing S87°27'25"E, 61.76 feet along the South line of the SE 1/4 of said Section 9 to the Northeast corner of the W 1/2 of the W 1/2 of the NE 1/4 of said Section 16;

Thence S00°29'06"W, 2700.60 feet along the East line of the W 1/2 of the W 1/2 of the NE 1/4 of said Section 16 to the Southeast corner thereof;

Thence S00°32'09"W, 2699.69 feet along the East line of the W 1/2 of the W 1/2 of the SE 1/4 of said Section 16 to the Southeast corner thereof;

Thence S00°28'52"W, 1324.28 feet along the East line of the W 1/2 of the NW 1/4 of the NE 1/4 of said Section 21 to the Southeast corner thereof;

Thence S89°46'54"E, 658.67 feet along the South line of the NW 1/4 of the NE 1/4 of said Section 21 to the Southeast corner thereof;

Thence N00°29'57"E, 1325.50 feet along the East line of the NW 1/4 of the NE 1/4 of said Section 21 to the Northeast corner thereof;

Thence N00°34'45"E, 1343.19 feet along the West line of the SE 1/4 of the SE 1/4 of said Section 16 to the Northwest corner thereof;

Thence S89°18'43"E, 1320.20 feet along the North line of the SE 1/4 of the SE 1/4 of said Section 16 to the Northeast corner thereof;

Thence S89°45'38"E, 1321.95 feet along the North line of the SW 1/4 of the SW 1/4 of said Section 15 to the Northeast corner thereof;

Thence S00°31'39"W, 683.81 feet along the East line of the SW 1/4 of the SW 1/4 of said Section 15 to the approximate Northerly bank of the Supply Ditch;

The following courses and distances are along the approximate Northerly bank of said Supply Ditch:

Thence N74°04'04"E, 86.38 feet;

Thence N61°42'40"E, 199.17 feet;

Thence N21°00'22"E, 276.56 feet;

Thence N45°56'00"E, 75.97 feet;

Thence N75°25'05"E, 176.92 feet;

Thence S27°00'29"E, 306.77 feet;

Thence S64°35'35"E, 357.74 feet;

Thence S79°34'12"E, 142.33 feet;

Thence S63°57'18"E, 182.39 feet;

Thence S50°18'58"E, 112.20 feet;

Thence S71°54'56"E, 168.49 feet;



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Thence S55°53'34"E, 189.88 feet;

Thence S75°12'21"E, 184.87 feet;

Thence S66°08'01"E, 196.80 feet;

Thence S57°15'11"E, 312.16 feet;

Thence S37°39'43"E, 194.52 feet;

Thence S39°28'40"E, 236.03 feet to the East line of the NW 1/4 of the NE 1/4 of said Section 22;

Thence, leaving the approximate Northerly bank of said Supply Ditch, N00°23'09"E, 274.18 feet along the East line of the NW 1/4 of the NE 1/4 of said Section 22 to the Northeast corner thereof;

Thence S89°54'18"E, 532.30 feet along the South line of the SE 1/4 of said Section 15 to a point from which the Southeast corner of said Section 15 bears S89°54'18"E, 793.42 feet;

Thence N05°48'06"W, 2055.16 feet;

Thence N61°53'26"W, 406.88 feet;

Thence N14°23'36"W, 431.01 feet;

Thence N22°20'47"W, 1733.69 feet;

Thence N33°00'42"W, 1264.40 feet to the North line of the NW 1/4 of said Section 15, from which the N 1/4 corner of said Section 15 bears S89°51'50"E, 199.23 feet;

Thence N11°26'41"W, 2699.53 feet to the East-West centerline of said Section 10;

Thence N89°10'22"W, 1879.89 feet along the East-West centerline of said Section 10 to the W 1/4 corner of said Section 10;

Thence N00°16'51"E, 2146.77 feet along the East line of the NE 1/4 of said Section 9 to the Southerly line of Tract "A" conveyed to the United States of America as described in Warranty Deed recorded in Book 905 at Page 250 of the records of Boulder County, Colorado;

Thence N88°56'02"W, 349.96 feet along the Southerly line of said Tract "A" to a point of curve to the left;

Thence Westerly, 106.38 feet along the Southerly line of said Tract "A" and along the arc of said curve to a point tangent, said arc having a radius of 1325.00 feet, a central angle of 4°36'00" and being subtended by a chord that bears S88°45'58"W, 106.35 feet;

Thence S86°27'58"W, 332.10 feet along the Southerly line of said Tract "A" to a point of curve to the right;

Thence Westerly, 134.86 feet along the Southerly line of said Tract "A" and along the arc of said curve to a point tangent, said arc having a radius of 643.00 feet, a central angle of 12°01'00" and being subtended by a chord that bears N87°31'32"W, 134.61 feet;

Thence N81°31'02"W, 913.54 feet along the Southerly line of said Tract "A" and along the Southerly line of Tract "B" conveyed to the United States of America as described in Warranty Deed recorded on Film 834 at Reception No. 083286 of the records of Boulder County, Colorado, to the Easterly line of Tract "D" as described in said Book 905 at Page 250;

Thence S60°20'22"W, 196.38 feet along the Easterly line of said Tract "D" to the West line of the E 1/2 of the W 1/2 of the NE 1/4 of said Section 9;

Thence S00°09'52"W, 246.96 feet along the West line of the E 1/2 of the W 1/2 of the NE 1/4 of said Section 9 to the Northeasterly line of Tract "C" as described in said Book 905 at Page 250;

Thence S38°43'00"E, 73.00 feet along the Northeasterly line of said Tract "C" to a point of curve to the right;

Thence Southerly, 302.62 feet along the Easterly line of said Tract "C" and

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along the arc of said curve to a point tangent, said arc having a radius of 308.70 feet, a central angle of 56°10'00" and being subtended by a chord that bears S10°38'00"E, 290.64 feet;

Thence S17°27'00"W, 440.20 feet along the Easterly line of said Tract "C" and along the Easterly line of Tract "B" conveyed to the United States of America as described in Book 903 at Page 221 of the records of Boulder County, Colorado, to a point of curve to the right;

Thence Southwesterly, 140.41 feet along the Southeasterly line of said Tract "E" and along the arc of said curve to a point tangent, said arc having a radius of 356.50 feet, a central angle of 22°34'00" and being subtended by a chord that bears S28°44'00"W, 139.51 feet;

Thence S40°01'00"W, 250.22 feet along the Southeasterly line of said Tract "E" to a point from which said Point "A" bears S00°44'32"W;

Thence S00°44'32"W, 1903.12 feet to said Point "A";

Thence S07°49'07"E, 1538.20 feet to the True Point of Beginning.

TOGETHER WITH right-of-way for private driveway over and across the East 25.00 feet of the W 1/2 of the NE 1/4 of said Section 22;

TOGETHER WITH an easement for purposes of ingress and egress: Access from County Road Number 47, described as follows:

60 foot right-of-way and utility easement being the South 60 feet of the Easterly 2059.2 feet of the Southeast quarter of Section 4, Township 3 North, Range 70 West of the 6th P.M. and the Easterly 60 feet of the West one-half of the West one-half of the Northeast quarter of Section 9, Township 3 North, Range 70 West of the 6th P.M. to the St. Vrain Supply Canal Right-of-Way Easement as described in Deed recorded April 1, 1952 in Book 903, Page 221; thence along the canal right-of-way easement to the Southwest quarter of Section 9, Township 3 North, Range 70 West of the 6th P.M., County of Boulder, State of Colorado.

SUBJECT to a right-of-way for Boulder County Road No. 47 (North 53rd Street, Vestal Road and North 57th Street),

COUNTY OF BOULDER,
STATE OF COLORADO

Not including, however, and excepting from the two foregoing parcels:

1. Any portion of the two foregoing parcels lying south of Highway 66, including but not limited to the real property hereinafter described under the heading Development Parcel South.
2. Any portion of the two foregoing parcels included in the real property hereinafter described under the heading Development Parcel North.
3. Any portion of the two foregoing parcels included in the real property hereinafter described under the heading Boulder County South Parcel A.

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EXCLUDING THE FOLLOWING PARCELS, known as the Development Parcel North; the Development Parcel South, and the Boulder County South Parcel A.

DEVELOPMENT PARCEL NORTH

A tract of land located in the S1/2 of Section 16 and in the N1/2 of Section 21, all in T3N, R70W of the 6th P.M., Boulder County, Colorado, described as follows:

Commencing at the S1/4 Corner of Section 9, T3N, R70W of the 6th P.M., from which the Southeast Corner of said Section 9 bears S87°27'25"E, 2644.89 feet, thence N87°28'55"W, 86.80 feet along the South line of the SW1/4 of said Section 9; thence S00°00'00"W, 3490.76 feet to the TRUE POINT OF BEGINNING;

Thence N89°58'20"W, 563.41 feet to the East line extended Northerly of that tract of land as described in Warranty Deed recorded in Book 601 at Page 45 of the records of Boulder County, Colorado and as described in Quit Claim Deed recorded in Book 603 at Page 26 of the records of Boulder County, Colorado;

Thence S00°01'40"W, 621.14 feet along the East line extended Northerly of that tract of land as described in said Book 601 at Page 45 and in said Book 603 at Page 26 to the Northeast Corner thereof;

Thence S00°01'40"W, 1194.78 feet along the East line of that tract of land as described in said Book 601 at Page 45 and in said Book 603 at Page 26 to the approximate Southerly bank of the Supply Ditch and the Northerly line of that tract of land as described in Warranty Deed recorded in Book 584 at Page 231 of the records of Boulder County, Colorado;

Thence S34°07'46"E, 151.34 feet along the approximate Southerly bank of said Supply Ditch and along the Northerly line of that tract of land as described in said Book 584 at Page 231 to the South line of the SW1/4 of said Section 16;

Thence S89°58'20"E, 25.37 feet along the South line of the SW1/4 of said Section 16 to the West line of the East 30 acres of the NW1/4 of said Section 21;

Thence S00°27'46"W, 2102.34 feet along the West line of the East 30 acres of the NW1/4 of said Section 21 to the Northeasterly right-of-way line of Colorado State Highway No. 66;



Thence S63°32'37"E, 497.42 feet along the Northeasterly right-of-way line of said Colorado State Highway No. 66 to the Northwesternly line of that tract of land as described in Warranty Deed recorded in Book 70 at Page 162 of the records of Boulder County, Colorado;

Thence N27°54'28"E, 101.97 feet along the Northwesternly line of that tract of land as described in said Book 70 at Page 162 to the North-South Centerline of said Section 21;

Thence N00°27'46"E, 645.55 feet along the North-South Centerline of said Section 21 to the South line of the North 265.00 feet of the NW1/4 of the SW1/4 of the NE1/4 of said Section 21;

Thence S89°46'54"E, 330.00 feet along the South line of the North 265.00 feet of the NW1/4 of the SW1/4 of the NE1/4 of said Section 21 to the East line of the West 330.00 feet of the NW1/4 of the SW1/4 of the NE1/4 of said Section 21;

Thence N00°27'46"E, 265.00 feet along the East line of the West 330.00 feet of the NW1/4 of the SW1/4 of the NE1/4 of said Section 21 to the South line of the NW1/4 of the NE1/4 of said Section 21;

Thence S89°46'52"E, 328.67 feet along the South line of the NW1/4 of the NE1/4 of said Section 21 to the Southeast Corner of the W1/2 of the NW1/4 of the NE1/4 of said Section 21;

Thence S89°46'54"E, 658.67 feet along the South line of the NW1/4 of the NE1/4 of said Section 21 to the Southeast Corner thereof;

Thence N00°29'57"E, 1314.38 feet along the East line of the NW1/4 of the NE1/4 of said Section 21 to the South line of Boulder County Road No. 47 as described in Exhibit A in Special Warranty Deed recorded on Film 2126 as Reception No. 1607221 of the records of Boulder County, Colorado;

Thence N89°37'04"W, 45.93 feet along the Southerly line of said Boulder County Road No. 47 to the Southwest Corner thereof;

Thence Northeasterly, 160.80 feet along the Westerly line of said Boulder County Road No. 47 and along the arc of a curve concave to the Southeast to the West line of the SE1/4 of the SE1/4 of said Section 21, said arc having a radius of 815.00 feet, a central angle of 11°18'16" and being subtended by a chord that bears N17°11'48"E, 160.54 feet;



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Thence N00°34'45"E, 1200.64 feet along the West line of the SE1/4 of the SE1/4 of said Section 16 to the Northwest Corner thereof;

Thence N00°34'45"E, 600.00 feet along the West line extended Northerly of the SE1/4 of the SE1/4 of said Section 16 to a point from which the True Point of Beginning bears N89°58'20"W;

Thence N89°58'20"W, 1377.93 feet to the TRUE POINT OF BEGINNING.

Subject to a right-of-way for Boulder County Road No. 47 (North 53rd Street).

EXCEPTIONS

All that portion of the Highland Ditch located in the W1/2 of the NW1/4 of the NE1/4 of said Section 21.

FURTHER EXCLUDING

DEVELOPMENT PARCEL SOUTH (PLANT ENTRANCE)

A tract of land located in the NW1/4 of Section 21, T3N, R70W of the 6th P.M., Boulder County, Colorado, described as follows:

Commencing at the N1/4 Corner of Section 16, T3N, R70W of the 6th P.M., from which the Northeast Corner of said Section 16 bears S87°27'25"E, 2644.89 feet, thence S00°29'31"W, 5428.32 feet along the North-South Centerline of said Section 16 to the S1/4 Corner of said Section 16; thence S00°27'46"W, 2646.11 feet along the North-South Centerline of said Section 21 to the Center of said Section 21; thence N89°40'32"W, 494.10 feet along the South line of the NW1/4 of said Section 21 to the West line of the East 30 acres of the NW1/4 of said Section 21 and the TRUE POINT OF BEGINNING;

Thence S89°40'32"E, 279.60 feet along the South line of the NW1/4 of said Section 21 to the Southwest Corner of that tract of land as described in Warranty Deed recorded in Book 70 at Page 162 of the records of Boulder County, Colorado;

Thence N27°54'28"E, 208.38 feet along the Northwesterly line of that tract of land as described in said Book 70 at Page 162 to the Southwesterly right-of-way line of Colorado State Highway No. 66;



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Thence N63°32'37"W, 417.92 feet along the Southwesterly right-of-way line of said Colorado State Highway No. 66 to the West line of the East 30 acres of the NW1/4 of said Section 21;

Thence S00°27'46"W, 368.76 feet along the West line of the East 30 acres of the NW1/4 of said Section 21 to the TRUE POINT OF BEGINNING.

EXCEPTIONS

Right-of-way for the Burlington and Northern Railroad.

FURTHER EXCLUDING

BOULDER COUNTY SOUTH PARCEL A (ANNEXATION ARM)

A tract of land located in the SW1/4 of Section 16 and in the NW1/4 of Section 21, all in T3N, R70W of the 6th P.M., Boulder County, Colorado, described as follows:

Commencing at the N1/4 Corner of said Section 16, from which the Northeast Corner of said Section 16 bears S87°27'25"E, 2644.89 feet, thence N87°28'55"W, 86.80 feet along the North line of the NW1/4 of said Section 16; thence S00°00'00"W, 3490.76 feet; thence N89°58'20"W, 563.41 feet to the East line extended Northerly of that tract of land as described in Warranty Deed recorded in Book 601 at Page 45 of the records of Boulder County, Colorado, and as described in Quit Claim Deed recorded in Book 603 at Page 26 of the records of Boulder County, Colorado, and the TRUE POINT OF BEGINNING;

Thence N89°58'20"W, 2030.68 feet to the West line of the SW1/4 of said Section 16;

Thence S00°28'48"W, 1941.21 feet along the West line of the SW1/4 of said Section 16 to the Southwest Corner of said Section 16;

Thence S00°26'16"W, 216.48 feet along the West line of the NW1/4 of said Section 21;

Thence S89°49'48"E, 399.85 feet;

Thence N00°28'48"E, 1758.67 feet;



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Thence S89°58'20"E, 1633.82 feet to the East line extended Northerly of that tract of land as described in said Book 601 at Page 45 and in said Book 603 at Page 26;

Thence N00°01'40"E, 400.00 feet along the East line extended Northerly of that tract of land as described in said Book 601 at Page 45 and in said Book 603 at Page 26 to the TRUE POINT OF BEGINNING.

Legal Descriptions Prepared By:
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EXHIBIT B

OPTION PROPERTY

DEVELOPMENT PARCEL NORTH

A tract of land located in the S1/2 of Section 16 and in the N1/2 of Section 21, all in T3N, R70W of the 6th P.M., Boulder County, Colorado, described as follows:

Commencing at the S1/4 Corner of Section 9, T3N, R70W of the 6th P.M., from which the Southeast Corner of said Section 9 bears S87°27'25"E, 2644.89 feet, thence N87°28'55"W, 86.80 feet along the South line of the SW1/4 of said Section 9; thence S00°00'00"W, 3490.76 feet to the TRUE POINT OF BEGINNING;

Thence N89°58'20"W, 563.41 feet to the East line extended Northerly of that tract of land as described in Warranty Deed recorded in Book 601 at Page 45 of the records of Boulder County, Colorado and as described in Quit Claim Deed recorded in Book 603 at Page 26 of the records of Boulder County, Colorado;

Thence S00°01'40"W, 621.14 feet along the East line extended Northerly of that tract of land as described in said Book 601 at Page 45 and in said Book 603 at Page 26 to the Northeast Corner thereof;

Thence S00°01'40"W, 1194.78 feet along the East line of that tract of land as described in said Book 601 at Page 45 and in said Book 603 at Page 26 to the approximate Southerly bank of the Supply Ditch and the Northerly line of that tract of land as described in Warranty Deed recorded in Book 584 at Page 231 of the records of Boulder County, Colorado;

Thence S34°07'46"E, 151.34 feet along the approximate Southerly bank of said Supply Ditch and along the Northerly line of that tract of land as described in said Book 584 at Page 231 to the South line of the SW1/4 of said Section 16;

Thence S89°58'20"E, 25.37 feet along the South line of the SW1/4 of said Section 16 to the West line of the East 30 acres of the NW1/4 of said Section 21;



Thence S00°27'46"W, 2102.34 feet along the West line of the East 30 acres of the NW1/4 of said Section 21 to the Northeasterly right-of-way line of Colorado State Highway No. 66;

Thence S63°32'37"E, 497.42 feet along the Northeasterly right-of-way line of said Colorado State Highway No. 66 to the Northwesterly line of that tract of land as described in Warranty Deed recorded in Book 70 at Page 162 of the records of Boulder County, Colorado;

Thence N27°54'28"E, 101.97 feet along the Northwesterly line of that tract of land as described in said Book 70 at Page 162 to the North-South Centerline of said Section 21;

Thence N00°27'46"E, 645.55 feet along the North-South Centerline of said Section 21 to the South line of the North 265.00 feet of the NW1/4 of the SW1/4 of the NE1/4 of said Section 21;

Thence S89°46'54"E, 330.00 feet along the South line of the North 265.00 feet of the NW1/4 of the SW1/4 of the NE1/4 of said Section 21 to the East line of the West 330.00 feet of the NW1/4 of the SW1/4 of the NE1/4 of said Section 21;

Thence N00°27'46"E, 265.00 feet along the East line of the West 330.00 feet of the NW1/4 of the SW1/4 of the NE1/4 of said Section 21 to the South line of the NW1/4 of the NE1/4 of said Section 21;

Thence S89°46'52"E, 328.67 feet along the South line of the NW1/4 of the NE1/4 of said Section 21 to the Southeast Corner of the W1/2 of the NW1/4 of the NE1/4 of said Section 21;

Thence S89°46'54"E, 658.67 feet along the South line of the NW1/4 of the NE1/4 of said Section 21 to the Southeast Corner thereof;

Thence N00°29'57"E, 1314.38 feet along the East line of the NW1/4 of the NE1/4 of said Section 21 to the South line of Boulder County Road No. 47 as described in Exhibit A in Special Warranty Deed recorded on Film 2126 as Reception No. 1607221 of the records of Boulder County, Colorado;

Thence N89°37'04"W, 45.93 feet along the Southerly line of said Boulder County Road No. 47 to the Southwest Corner thereof;

Thence Northeasterly, 160.80 feet along the Westerly line of said Boulder County Road No. 47 and along the arc of a curve

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concave to the Southeast to the West line of the SE1/4 of the SE1/4 of said Section 21, said arc having a radius of 815.00 feet, a central angle of 11°18'16" and being subtended by a chord that bears N17°11'48"E, 160.54 feet;

Thence N00°34'45"E, 1200.64 feet along the West line of the SE1/4 of the SE1/4 of said Section 16 to the Northwest Corner thereof;

Thence N00°34'45"E, 600.00 feet along the West line extended Northerly of the SE1/4 of the SE1/4 of said Section 16 to a point from which the True Point of Beginning bears N89°58'20"W;

Thence N89°58'20"W, 1377.93 feet to the TRUE POINT OF BEGINNING.

Subject to a right-of-way for Boulder County Road No. 47 (North 53rd Street).

EXCEPTIONS

All that portion of the Highland Ditch located in the W1/2 of the NW1/4 of the NE1/4 of said Section 21.

Legal Description Prepared By:
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